



OSGOODE HALL LAW SCHOOL
YORK UNIVERSITY

Memo

To: Public and Constitutional Law (Section D) Students
From: Kate Glover Berger
Date: May 2025
Re: Feedback on end of year assessments (final grades, April exam, optional assignments)

INTRODUCTION

It was such a pleasure to have the chance to spend the year with all of you. I know you did not get a choice in taking this course or in taking it with me, but I am certainly grateful to have had the opportunity to spend time with you throughout your first year of law school. Thank you for all that you invested in the course. I am so proud of you! I'll hope for the chance to work together again, whether in Administrative Law, in an independent research paper course, on a committee, or on some other law school business. Please do keep me posted on all that lies ahead. If I can be of any assistance along the way, please don't hesitate to reach out.

This memo aims to provide general feedback on your final grades and assessments in Public and Constitutional Law. It should be read in conjunction with the individual feedback you received on your exam and optional assignment. I am certainly always pleased to meet

with you to discuss your assessments or any other aspect of the course. I ask that you review the individual feedback you received, along with the feedback in this memo, before booking an appointment.

I also welcome your feedback on the course, including the elements that worked well for you and the elements that could be improved. As I mentioned in the syllabus and in class, your feedback is my most valuable resource in the teaching of this course. My true thanks to the students who invested time and thought into the anonymous course evaluations. Your feedback is of utmost insight and use as I reflect on our course and plan for next year. However, as only 15% of the class completed the course evaluations, I know there is much feedback that I have not received. Accordingly, I welcome any other feedback you have to share now that the course is complete.

In the sections that follow, I offer information and feedback regarding: (a) final grades in the course; (b) the optional assignments; and (c) the final exam. Please do not hesitate to reach out with any questions, ideas, or concerns that arise from this memo.

I. FINAL GRADES

As you know, the Osgoode grading profile prescribes the distribution of letter grades in our course (and for all courses). For courses with over 30 students, like ours, the profile provides:

- A range: 10.0-20.0% of the students in the course (1/3 of these grades can be '+' grades)
- B range: 55.0-65.0% of the students in the course (1/3 of these grades can be '+' grades)
- C range: 15.0-25.0% of the students in the course (2/3 of these grades can be '+' grades)
- D/F range: 0-10.0% of the students in the course

These ranges are strictly enforced and the rules provide for how to deal with fractions in the calculations.

As a default, I always aim to optimize the distribution of letter grades in students' favour. This was true in our class as well. At the end of the year, our class had 79 students, with one student who did not write the final exam. Accordingly, the grades profile was calculated based on 78 students. In light of this, the final distribution of letter grades in our course was:

- A range: 15 students (5 A+, 10 A) (19.2%)
- B range: 50 students (17 B+, 33 B) (64.1%)
- C range: 13 students (9 C+, 4 C) (16.6%)

- D/F range: 0 students

The highest grade in the class was 85.5%. This was the only grade in the class above 85%, though two students were less than one percentage point away.

II. OPTIONAL ASSIGNMENTS

I so enjoyed reading and listening to the optional assignments. They are a special learning opportunity for me – I have the chance to learn more about you and to gain additional insight into your understanding of, experience with, and reflections on issues of public and constitutional law, which I am always eager to learn. They also give me additional opportunities to see the tremendously impressive quality of work you can produce. In addition, they offer another opportunity for me to learn more about some of your skills, talents, creativity, judgment, and the expertise you bring to law school.

Twenty-five students in our course completed the optional assignment. As you know, the optional assignment allowed you to produce a podcast or a draft exam on course-related topics of your choice (within some general parameters). Five students submitted a draft exam and twenty submitted podcasts.

The draft exams included creative fact patterns raising issues of constitutional law. They showed careful attention to detail, meaningful understanding of the material and authorities, and clear visions of how the constitution can be relevant to very everyday human situations and problems. The exams also showed that as professors, students are demanding and have very high expectations! The draft exams that were submitted showed great (and deserved) confidence in all of you to confront challenging, comprehensive assessments. The answer keys provided showed genuine understanding of the facts, issues, and law, as well as the method and structure for working through a complicated set of facts using the lens of constitutional law. These draft exams also included questions unrelated to their hypothetical fact patterns, aimed at allowing students to deploy and demonstrate a variety of skills and expertise in a range of constitutional domains. One such question was:

PART THREE: REFLECTION

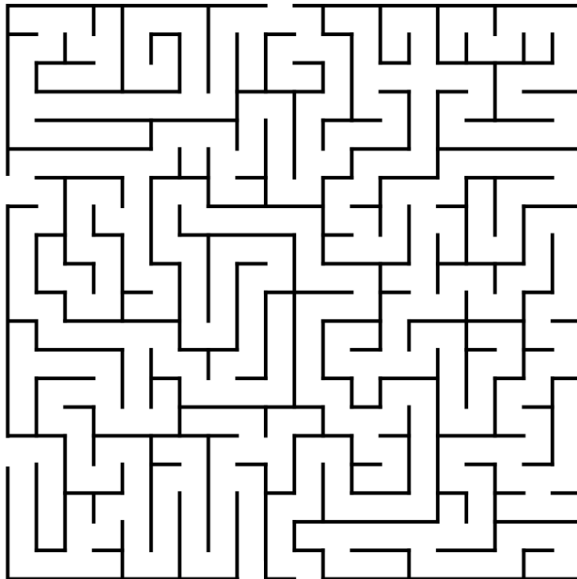
(10 marks)

Navigating public and constitutional law can sometimes feel like a maze.

Write a short reflection on this.

(recommended word count: 300-500 words)

Note: the maze is for visual inspiration only. You do not need to complete the maze.



I'd certainly be interested to read your answers to this reflection question now that the course is over!

With respect to the podcasts, there were many for which I had no advance notice of the topic and so I did not know what kinds of constitutional discussion I would encounter. It was exciting and so interesting to learn what interests you and what you find compelling in the world of public and constitutional law. The topics were diverse. As a random sample, the podcasts dealt with constitutional questions about: homelessness; religious freedom and Bill 21; Indigenous rights; Canada's Black Justice Strategy; privacy; the duty to consult; section 33 of the *Charter*; section 28 of the *Charter*; the government's actions in response to the Freedom Convoy; free expression and the case of Jordan Peterson; safe injection sites; whether universities are subject to the *Charter*; the Safe Third Country Agreement; LGBTQ2+ rights in the York Region Catholic District School Board; whether the constitution requires provincial Lieutenant Governors be bilingual; and big pharma in light of *Sanis Health v British Columbia*, 2024 SCC 40.

All of you who completed an optional assignment will have received (or will be receiving, depending on when you read this memo), a feedback memo with individualized comments on your assignment. I was very impressed with the quality of the assignments. For those assignments that I was aware of in advance, it is so satisfying to see how they changed and developed over the course of the term, as you learned more about public and constitutional law and became more deeply invested in the issues and questions. I'm sure this is true of the assignments that were completed completely independently as well. I am always so interested in the topics chosen and the insights shared through these assignments, and, this year, as is almost always the case, I added to the list of topics, issues, and examples I'll rely on in future classes.

III. APRIL EXAM

It is never pleasant to have to assign grades to your hard work. The opportunity to offer feedback and comments on your work as you are learning so many new skills, new ways of thinking, and new substantive material is one I take very seriously and believe to be very special. But the evaluation component of teaching is very difficult and its significance weighs heavily on me. That said, it always makes me so happy to read exams at the end of a term or course, and your April exams were no exception. The exams are one window (of many) into what you have learned and what you are thinking when it comes to public and constitutional law. Thank you for the time, care, effort, insight, and energy you invested in your exam; the work invested is obvious. I came away from the exams heartened and so impressed with your talents and all you have learned – both substantively and in skills – this year.

The grading profile is not applied to the grades for your exam. Rather, the exam grades, weighted at either 30% or 55%, are added to your other assessment scores from this year. The grading profile, as explained above, is then applied to the sum of each of your assessment grades.

As always, with the April exams, I read most of the exams before sitting down to mark. This helped me calibrate my expectations and get a sense of what can fairly count as a “B” range answer (i.e. the “good” range). In this way, the class as a whole sets the standard for a “good” answer. The average mark on the exam was 73.7%, which is in the B range. As is usually the case, this is higher than it otherwise would have been without adjusting the standard for what counts as the ‘good’ answer going into the marking. The highest grade on the exam was 85.5%, which was earned by one student. One student earned 85% and two students earned 84.5%. There were no failing exams.

(a) Numbers and symbols on your exam

On your exam, you will find six numbers in the top lefthand corner of the first page. The circled number is your score on this exam (out of 100). It is the sum of the other five

numbers. Those five numbers represent your scores on each of the individual questions. Every Part or question was worth 20 marks. These scores are listed in the order of the questions:

- The first number is your score on Part I (Multiple Choice).
- The second number is your score on Part II.1 (Hypothetical Fact Pattern, application of the *Charter*).
- The third number is your score for Part II.2 (Hypothetical Fact Pattern, Limit of section 2(a)).
- The fourth number is your score for Part II.3 (Hypothetical Fact Pattern, “Prescribed by Law”).
- The fifth number is your score for Part III (Agree or Disagree).

As you know from earlier assessments, an asterisk (*) beside the points awarded for any question indicates that the answer was on the border between the mark given and one mark lower. In such borderline situations, I always assign the higher point value. Like for the December exam, it is worth reflecting on your scores for the written parts of the exam separately from your score for Part I (Multiple Choice). Part II, in particular, required you to provide a complete legal analysis in response to the question posed. The skills of analysis, reasoning, and written communication called for in Part II are obviously different from the, also important, skills of close reading and analysis needed to answer the questions in Part I. The skills needed for strong answers in Part III are also somewhat different. Both questions in Part III called for advocacy for a particular position, as supported by the relevant law. While III.1 also called for doctrinal analysis, the style of persuasive writing needed in Part III is a unique skill. All this to say, each part of the exam is linked by their grounding in public and constitutional law, but they are differentiated by the skills you were being asked to deploy. Paying attention to the scores for the individual sections of the exam thus offers some insight into the areas that might need further attention for future exams.

In addition to the comments and numbers you see on the exam, you will also see several symbols. These are standardized symbols I use when marking:

- A check mark means “good!”, “that’s right!” and/or “yes!”.
- A vertical line beside some portion of text is questioning its relevance to the question and the analysis in your answer as a whole.
- A horizontal line underneath text indicates that the text is questionable, inaccurate, and/or incomplete in some way.
- A ‘^’ and a horizontal line after some text indicates that the idea expressed therein needs further explanation to be clear, complete, or fully accurate.
- A set of parentheses after some text indicates that a source was needed and should have been included to support the claim being made.

I have posted the exam on eClass so that you can review it along with your answers and this memo. Again, please review each of these documents before booking a meeting to discuss your exam.

(b) Feedback on Part I (Multiple Choice)

You were asked to answer 10 out of the 12 questions in Part I. Each answer was worth two marks. The answers for the multiple choice questions were:

- | | |
|----------|----------|
| 1. FALSE | 7. A |
| 2. D | 8. FALSE |
| 3. TRUE | 9. B |
| 4. D | 10. TRUE |
| 5. A | 11. B |
| 6. FALSE | 12. E |

The answers to the multiple choice questions on the deferred exam were:

- | | |
|----------|-----------|
| 1. E | 7. C |
| 2. False | 8. C |
| 3. E | 9. False |
| 4. False | 10. E |
| 5. C | 11. False |
| 6. False | 12. C |

Part I was well done and showed your skills of reading carefully, paying attention to detail, and understanding of the material. Very well done! My tracking did not reveal any noteworthy patterns of incorrect answers that required attention or called for accepting multiple answers. Indeed, I don't have other feedback to provide on Part I other than keep doing all the things you demonstrated on this exam!

(c) Feedback on Part II

Part II of the exam asked you to answer three questions about a hypothetical fact pattern. They were specific questions, each of which called on you to identify and apply the relevant constitutional text and framework to the facts relevant to the particular question. As indicated in the instructions, written answers were assessed on two criteria: quality of communication and quality of analysis. Accordingly, the strongest answers were clear, directly responsive to the question asked, organized in a logical way tailored to the analysis and question asked, comfortable in identifying and applying the relevant law and authorities, and carefully set out and explored the relevant facts. I have set out below the basic features expected of a 'good' answer, all in service of continuing to strengthen your skills of written communication and legal reasoning, as well as your understanding of public and constitutional law concepts. These features will be familiar to you from feedback on the December exam. The discussion of these features, along with the discussion of areas for improvement, should be read together with the content, symbols and comments on your individual exam.

As a general matter and at a minimum, a good exam answer is expected to:

- Present an answer that is clearly written and organized in a way appropriate to the issues and analysis at stake;
- Respond directly to the issues raised in the question, including providing advice to the specific client seeking it;
- Identify and rely on relevant authorities to support the reasoning provided;
- Apply the law to the facts in order to identify and assess the plausible legal arguments and outcomes;
- Provide persuasive reasoning to support all legal conclusions (i.e. explain the reasoning that leads from the issue to the answer);
- Avoid discussion of irrelevant issues and general description of public and constitutional law that is irrelevant to the question asked.

With respect to the specific questions:

Question 1: The issue in question 1 was whether the *Charter* applied to the Collective's Guidelines? In other words, do the Guidelines have to comply with the *Charter*? In terms of basic features, good answer would (accurately or plausibly):

- Identify the issue at stake;
- Identify the relevant constitutional text (s. 32(1) of the *Charter*);
- Explain why the issue is not obviously addressed by the text of section 32(1) alone;

- Identify the question that must be addressed, namely whether the circumstances involve “government” such that the *Charter* applies pursuant to section 32(1)?
- Identify the relevant legal framework, namely the *Eldridge* framework for determining whether the Collective is a government actor or whether the Guidelines are government activity. Show knowledge of the consequences of these findings.
- Consider each of the possible ways by which the Collective or the Guidelines could meet the respective standards for government actor or government activity.
- Identify the legal standard for each possibility, consider whether the relevant facts met that standard, use the relevant authorities to determine whether the relevant facts met the standard, fully explain the reasoning for your conclusions, and state a conclusion that follows from the reasoning.
- Avoid discussion of irrelevant material and of issues that were identified as assumed in the question. For the purposes of this question, it was not necessary to determine whether the claimants enjoyed the benefit of the *Charter*. However, I understand why many of you included this in your answer and so addressing this issue did not diminish the strength of any answer and failing to do so did not strengthen an answer.

Question 2: The issue for question 2 was whether the Guidelines limit section 2(a) of the *Charter*? For this question, a good answer would (in a way that is now becoming familiar, no doubt):

- Identify the issue at stake;
- Identify the relevant *Charter* text (i.e. section 2(a));

- Identify and show understanding of the relevant legal framework for determining whether there's a breach of section 2(a) (i.e. *Amselem*);
- Consider the relevant facts in light of the law, with attention to the most relevant facts, including the non-mandatory nature of the practice and whether there are meaningful alternatives to the vertical items, and most relevant law (e.g. analogy to *Amselem*).
- Explain your reasoning and reach a conclusion that follows from your reasoning and makes sense in light of the facts and law. For this question, the analysis should show an understanding of the low threshold that is usually set for determining whether section 2(a) has been breached and that these circumstances were likely to meet the requisite test.
- Avoid implausible arguments, discussion of clearly irrelevant law, and general discussion of the history and development of the law on religious freedom.

Question 3: The issue for question 3 was, assuming the Guidelines constitute a breach of section 2(a), is the limit “prescribed by law” within the meaning of section 1 of the *Charter*. In terms of basic features, a good answer would:

- Identify the issue at stake;
- Identify the applicable *Charter* text (i.e. section 1);
- Identify the sub-issues that must be assessed (i.e. whether the limit is authorized by law and whether the limit is prescribed).

- Work through each sub-issue by identifying the relevant legal standard to be met, considering the most relevant facts in light of that standard (e.g. distribution of the Guidelines, link to formal sources of law, etc), explaining your reasoning, and reaching a conclusion that follows from your reasoning and makes sense in light of the relevant law and facts.

On the whole, the answers to question 1 were the strongest of the three questions in Part II. There was widespread knowledge of the applicability of the *Eldridge* framework and the basis for deploying it, and much discussion of relevant facts (e.g. the nature of the membership of the Collective, the absence of statutory direction, whether government actors are involved, the decision-making in the Collective, the agreement between the Collective and the mayor, the Collective's mandate, etc).

One of the most common areas for improvement was in terms of structure and organization of analysis. Consider answers to question 1 as an example. While there are many ways to present a logical answer to this question, the *Eldridge* framework offers a straightforward structure insofar as it identifies a number of possible ways for the standard of "government" to be met and the question required you to canvass each of those possibilities. In public and constitutional law, it is most often the law that will offer the most straightforward structure to follow rather than organizing your analysis in relation to the individual facts (i.e. considering each fact and how it fits into the various possibilities). Adopting this latter strategy often bogged students down and was a route to losing the plot of which standard was met and when.

Another common area for improvement was providing complete accounts of your reasoning. As one small illustrative example, in question 1, many of you (rightly) concluded that the Guidelines were not an exercise of a statutory power of compulsion. There is not much reasoning required to reach this conclusion and indeed, it might seem obvious. However, in explaining your legal reasoning, you should not take the conclusions for granted as obvious. Here, a sentence or two of reasoning was needed in order to dismiss

this possibility. Those two sentences would: (1) explain what a ‘power of compulsion’ is and (2) explain why the Guidelines do not fall within this category. Getting into the habit of explaining *why* you have reached a conclusion – and do so in detail, setting out each necessary logical step – will enhance your reasoning (and your ability to analogize and distinguish authorities) significantly. It will also help build your judgment of what is relevant, irrelevant, plausible, and implausible in legal reasoning.

Another common error was insufficient reference to authorities. For example, again for question 1, several answers only referenced *Eldridge* or stated the law without referencing *Eldridge*. Both of these are shortcomings of an answer. In short, as a general rule, every legal claim you make should be supported by reference to an authority.

In terms of substance, some common shortcomings stood out. For example, with respect to question 3, a common error was to provide an *Oakes* analysis either alone or alongside the “prescribed by law” analysis. This weakens an answer because it raises questions about whether the question was misread or whether the student believes that the *Oakes* test exhausts the analysis for section 1 and/or believes that the *Oakes* test is part of the “prescribed by law” analysis.

Another common spot for substantive shortcomings was in the details of the analysis of whether the Guidelines were “prescribed by law”. Often, this reflected a misreading of the facts, for example, believing that the Guidelines were posted on the Collective’s website. Sometimes, the analysis of this question was based on an implausible account of the law or facts or an account that did not accord with common sense. For example, some answers equated the legal status and source of the Guidelines and the Municipal Regulations and conducted the “prescribed by law” analysis on the Municipal Regulations instead of the Guidelines. This is not supportable on the facts or the law, and indeed, the distinction between the various documents, relationships, and actions is a key part of the analysis. The limit being considered was set out in the Guidelines and is specified as the source of

the limit in the question. This had to be the focus of the analysis in order to address the issue in the question. Following on this point, I would suggest always considering whether the arguments you are making and the conclusions you are reaching are consistent with common sense. If the answer is no, you should pause to consider whether something has gone awry – or whether you should be arguing that the law is leading to absurd results. While there are certainly ways in which the law can lead to unexpected results and is not always intuitive, if the reasoning or conclusion is completely divorced from common sense, it is worth some additional reflection.

One final note about shortcomings deals with insufficient attention to the facts and the preliminary pieces of a legal analysis. A very common feature of answers to all the questions was to omit reference to the relevant constitutional text and/or to the preliminary conclusions that must be made in order to trigger the need for the applicable legal framework. For example, in question 1, many answers did not refer to section 32(1) of the *Charter* or indicate that the decision-maker involved was not a legislature or an established actor in the administrative state (*Dolphin Delivery*). It is because of these preliminary steps in the analysis that we must consider the *Eldridge* framework.

While there are many areas for improvement set out above and indicated on your exams, please read this feedback in conjunction with the enthusiasm and checkmarks seen on your exams and in the strengths of the exams and your work that are discussed throughout this memo. Further, there were many exams that met the standard of excellence. As noted in the feedback memo for the December exam, on this exam, legal analysis moved from ‘good’ to excellent (focusing in particular on quality of communication and quality of analysis) by demonstrating one or more of the following qualities:

- Mastery of the material (e.g. careful and precise analysis with the facts and how they are understood by the law; nimble engagement with the law, facts, and complications; clear discernment of what was relevant and irrelevant;

comprehensive justification of each conclusion reached, whether on a preliminary or final point).

- Independent thought and judgment (e.g. creative or unique (but still plausible) arguments; synthesis of the material and organization into one's own analytical framework; particularly thoughtful reflection on the facts)
- Insight into issues and/or authorities
- High skill in grappling with conflicting possibilities, counter-arguments and/or alternatives
- Attention to detail in reasoning with authorities and the facts
- Excellent structure and organization of reasoning

(d) Feedback on Part III

With respect to Part III, a good answer was expected to:

- Clearly state a position of agreement or disagreement with statement provided;
- Fully explain your position;
- Support position with reference to relevant authorities;
- Write clearly and in a well-structured way.
- For Option 1, a good answer was expected to consider what was required by the duty to consult in the circumstances (applying *Haida*) and then considering whether the Ministry met the required standard.
- For Option 2, there was great flexibility for what could constitute a good answer. Ultimately, a strong answer would have to defend their position with reference to meaningful and relevant examples or authorities in support.

Answers to Part III were generally fairly well done. There were no common shortcomings of note. The vast majority of you answered option 1, which was expected given that you had the facts in advance and so had the opportunity to consider the issue of the duty to consult in advance of the exam. I believe only five students chose option 2. These tended to be particularly strong answers, perhaps because choosing this option reflected particular experience with or insight into the issues raised.

You have learned so much this year; it is immeasurable. This memo aims to provide feedback on only a fraction of that learning, and indeed, assessments only capture a fraction, despite best attempts and efforts. I hope this feedback is helpful and, when read together with the exam, your answers, and previous feedback provides meaningful insight into your grade you received, the strengths of your work, and opportunities for further strengthening. If there is further feedback that would be of use to you, please do not hesitate to reach out. I will post a link to an electronic scheduler for you to make an appointment or you can reach out by email. Further, and as noted above, if you have feedback for me on the course, pedagogy and/or the assessments – e.g. expectations, format, design, content, and so on – I certainly welcome it and my future students will be grateful too.

Thank you again for spending your year with me and for all that you have shared with me. It has been such a pleasure.

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